

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Joshua Richardson	Team: Squad #15	CCRB Case #: 201601380	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 02/13/2016 6:30 PM	Location of Incident: 720 67th Street	18 Mo. SOL 8/13/2017	Precinct: 68		
Date/Time CV Reported Sat, 02/13/2016 7:50 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 02/19/2016 11:14 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Aida Dejesus	27135	948217	068 PCT
2. POM Justin Douglas	29998	956610	068 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Roman Mishiyeve	2907	928791	068 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Justin Douglas	Abuse: Police Officer Justin Douglas threatened to arrest § 87(2)(b)	A . Unsubstantiated
B . POF Aida Dejesus	Abuse: Police Officer Aida Dejesus threatened to arrest § 87(2)(b)	B . Unsubstantiated

Case Summary

On February 13, 2016, at approximately 6:30 p.m., PO Aida Dejesus and PO Justin Douglas, both of the 68th Precinct, responded to a motor vehicle accident at 720 67th Street, in Brooklyn, which involved § 87(2)(b)'s New York City yellow taxi cab. PO Dejesus and PO Douglas told § 87(2)(b) that it is NYPD policy that they have to call their own tow truck to tow § 87(2)(b)'s taxi cab. Shortly thereafter, the tow truck arrived on scene and § 87(2)(b) began to speak with the tow truck employee and allegedly stood in front of his vehicle blocking it from being towed. PO Douglas approached § 87(2)(b) and stated to him "If you don't want to let him to tow your vehicle you may be subject to arrest." (**Allegation A**). PO Dejesus also approached and stated to § 87(2)(b) "I am going to give you a warning. You have to let him do his job or else you are going to be arrested." (**Allegation B**). § 87(2)(b) called 911 several times requesting a supervisor respond to the scene.

Sgt. Mishiyev of the 68th Precinct arrived on scene and began speaking to § 87(2)(b) and then began speaking with PO Douglas and PO Dejesus. Shortly after, PO Douglas approached § 87(2)(b)'s vehicle. After § 87(2)(b) and § 87(2)(b) gave PO Douglas and PO Dejesus their identifications, § 87(2)(b) and § 87(2)(b) were all issued summonses for § 87(2)(b). PO Douglas and PO Dejesus then left the scene.

§ 87(2)(g)

This case has no video evidence.

Mediation, Civil and Criminal Histories

- On March 14, 2016, § 87(2)(b) rejected mediation as an alternative to resolve this complaint § 87(2)(b).
- On April 5, 2016 a request was made to determine if a Notice of Claim was filed in regards to this incident. Confirmation from the New York City Office of the Comptroller will be added to the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the second complaint filed by § 87(2)(b) § 87(2)(b). This is the first complaint involving § 87(2)(b) and § 87(2)(b) (See Board Review 01).
- PO Douglas has been a member of service for 1 year and has had no other CCRB allegations.
- PO Dejesus has been a member of service for 6 years and has been the subject of one other CCRB allegation, in case number 201202987. In that case, a discourtesy allegation was closed as complainant uncooperative.

Potential Issues

- The other motorist involved in the vehicle accident was not a witness to any FADO allegations, because he left the scene before the tow truck arrived.

- The tow truck employee was uncooperative with the investigation.

Allegations Not Pleaded

- § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Findings and Recommendations

Allegation A: Abuse of Authority: Police Officer Justin Douglas threatened to arrest § 87(2)(b)

Allegation B: Abuse of Authority: Police Officer Aida Dejesus threatened to arrest § 87(2)(b)

Although § 87(2)(b) [REDACTED] stated PO Douglas was the only police officer that threatened to arrest him, § 87(2)(b) [REDACTED] and § 87(2)(b) [REDACTED] reported that PO Dejesus threatened to arrest § 87(2)(b) [REDACTED] as well. Both PO Douglas and PO Dejesus acknowledged threatening to arrest § 87(2)(b) [REDACTED].
§ 87(2)(g) [REDACTED].

§ 87(2)(b) [REDACTED] stated that when the tow truck arrived on scene he approached the employees and began conversing with them about where he wanted his vehicle towed. § 87(2)(b) [REDACTED] stated during this conversation he was not in front of his vehicle but standing 5 feet away from it in the street. § 87(2)(b) [REDACTED] stated at no point was he blocking the tow truck employees from towing his vehicle. § 87(2)(b) [REDACTED] stated PO Douglas approached him and stated “If you do not step away from the vehicle, I am going to arrest you.” (Board Review 02)

§ 87(2)(b) [REDACTED] § 87(2)(g) [REDACTED] added when PO Douglas was speaking to § 87(2)(b) [REDACTED] PO Dejesus spoke to him and asked if he was involved in the motor vehicle accident. When § 87(2)(b) [REDACTED] responded “No he § 87(2)(b) [REDACTED] is,” and she responded with “I am going to arrest him” referring to § 87(2)(b) [REDACTED] (Board Review 03)

§ 87(2)(b) [REDACTED] stated at some point during the incident he heard PO Dejesus state to § 87(2)(b) [REDACTED] “If you do not stop talking, I am going to arrest you.” (Board Review 04)

PO Douglas testified that when the DARP tow truck arrived on scene he observed § 87(2)(b) [REDACTED] standing in between the tow truck and his taxi cab blocking the tow truck employee from towing the vehicle. PO Douglas stated approximately 20 seconds after this; the tow truck employee approached him and told him that § 87(2)(b) [REDACTED] does not want to let him take the vehicle. At this point PO Douglas exited his vehicle and approached § 87(2)(b) [REDACTED] where he observed § 87(2)(b) [REDACTED] and § 87(2)(b) [REDACTED] also standing in front of the taxi cab. PO Douglas stated he explained NYPD towing procedure and policy to § 87(2)(b) [REDACTED] and stated, “If you don’t want to let him to tow your vehicle you may be subject to arrest.” PO Douglas stated § 87(2)(b) [REDACTED] was guilty of Obstructing

Governmental Administration because by blocking the DARP tow truck from taking his vehicle he was preventing the police from performing their job duties. PO Douglas stated it was his duty to make sure the vehicle was towed. PO Douglas stated he informed § 87(2)(b) that he would be arrested for Obstructing Governmental Administration. PO Douglas stated he never heard PO Dejesus threaten to arrest § 87(2)(b) at any way at any point during the incident. (Board Review 05)

PO Dejesus testified that when the DARP tow truck arrived on scene, she told the employee which vehicle to tow, and then observed § 87(2)(b) stand in front of his taxi cab blocking the employee from taking the vehicle. PO Dejesus stated she exited her police vehicle, and approached § 87(2)(b). PO Dejesus observed § 87(2)(b) and § 87(2)(b) standing near § 87(2)(b) but not in front of the taxi cab. PO Dejesus stated she told § 87(2)(b) that he needs to let the tow truck employee do his job and then stated "I am going to give you a warning. You have to let him do his job or else you are going to be arrested." PO Dejesus stated that § 87(2)(b) was guilty of Obstructing Governmental Administration and stated she informed § 87(2)(b) of this, and gave him this warning twice. PO Dejesus stated she never heard PO Douglas state "If you do not step away from the vehicle, I am going to arrest you" or threaten to arrest § 87(2)(b) in any way during the incident. (Board Review 06)

§ 87(2)(g)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. Therefore it is recommended that **Allegations A** and **B** be closed as **unsubstantiated**.